

1 **HOUSE OF REPRESENTATIVES - FLOOR VERSION**

2 STATE OF OKLAHOMA

3 2nd Session of the 60th Legislature (2026)

4 ENGROSSED SENATE
5 BILL NO. 1209

By: Kirt of the Senate

and

6 Pae, **Deck**, and **Menz** of the
7 House

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10 An Act relating to forcible entry and detainer;
11 amending 12 O.S. 2021, Section 1148.4, which relates
12 to issuance and return of summons; modifying time
13 period for certain trial; updating statutory
14 language; making language gender neutral; and
15 providing an effective date.

16 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

17 SECTION 1. AMENDATORY 12 O.S. 2021, Section 1148.4, is
18 amended to read as follows:

19 Section 1148.4. The summons shall be issued and returned as in
20 other cases, except that it shall command the sheriff, or other
21 person serving it, to summon the defendant to appear for trial at
22 the time and place specified ~~therein~~ in the summons, which time
23 shall be not less than five (5) days nor more than ten (10) days,
24 exclusive of Sundays and holidays, from the date that the summons is
 issued. The summons shall apprise the defendant of the nature of

1 the claim that is being asserted against him or her; and there shall
2 be endorsed upon the summons the relief sought and the amount for
3 which the plaintiff will take judgment if the defendant fails to
4 appear. In all cases, pleadings may be amended to conform to the
5 evidence.

6 SECTION 2. This act shall become effective November 1, 2026.

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8 COMMITTEE REPORT BY: COMMITTEE ON JUDICIARY AND PUBLIC SAFETY
9 OVERSIGHT, dated 04/16/2026 - DO PASS, As Coauthored.
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